

WEEK 4 · REASON AND COMPETENCE

CLASS 2

Voting Rights

READING 1

Why Children and Youth Should Have the Right to Vote – Wall

READING 2

Selections from The Pre-Political Child of Child-Centered
Jurisprudence – Appell

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Why Children and Youth Should Have the Right to Vote: An Argument for Proxy-Claim Suffrage

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Abstract

This article examines recent debates about extending the right to vote to children and youth under the age of 18. It uses postmodern political theory to argue that concerns about children's insufficient capabilities and potential to harm themselves and others are unfounded, and that, except in the earliest years, the right to vote for minors would promote the full and just functioning of democracies.

Keywords: democracy, children's rights, suffrage, vote

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Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 109

Many now recognize, at least in principle, that the third of humanity who are under 18 years of age ought to possess a degree of political rights. Children and youth are citizens of their countries deserving voices in the public arenas that affect their lives. Indeed, children have gained an increased political standing in many parts of the world, especially since the near-universal ratification of the 1989 Convention on the Rights of Child (CRC), which includes political rights such as to free speech and assembly. At the same time, however, children and youth are almost universally denied what is arguably the most basic political right of all, namely the right to vote. This right has gradually been extended to other groups such as the poor, ethnic minorities, and women over the past century and a half. Nevertheless, despite a growing movement of young people and child suffrage advocates, the right to vote for minors remains little discussed in the academy and largely unthinkable in the general public.

This article uses political theory to argue that all but the youngest children and youth need and deserve the right to vote just as much as do adults. Because it is largely assumed that minors should not vote, I make this argument by deconstructing seven of the most prevalent scholarly and practical objections. These objections fall into two categories: that children and youth lack sufficient capacities to vote, and that their voting would cause themselves or others harm. I conclude with a practical proposal for what I call a “proxy-claim” vote in which child and youth citizens of democratic countries should be provided, first, a proxy vote at birth to be exercised by a parent or guardian that, second, children would be able to claim for themselves when they so choose. The theoretical basis for this argument, which I do not develop here, is the postmodern concept that political subjects are not autonomous individuals but rather interdependent and culturally diverse responders to one another’s differences of lived experience (Wall 2010; Wall and Dar 2011). More broadly, democracies are meant to represent the *demos* or “people,” and this should also include children.

Of course, democratic rights depend on a great deal more than the formal act of voting. They also involve informal rights such as free speech, assembly, a free press, access to information, non-discrimination, and much else. Here, I simply wish to make the case that formal suffrage is a minimum democratic requirement for all. As for adults, not all children will benefit equally from voting, for age is only one of many political variables alongside class, ethnicity, race, gender, and much else. Nor are the reasons for children’s suffrage necessarily identical to those for women and other formerly disenfranchised groups. Nevertheless, it is time for longstanding assumptions underlying children’s exclusion from voting to be reconsidered.

Arguments about Capacity

Many objections to children and youth voting are variations on the idea that children lack the requisite political capacities. In terms of political theory, these are “deontological” arguments, meaning they are based on claims about human *deon* or natural necessity. Such objections recall Locke’s view, at the very dawn of modern democratic theory, that political rights require fully developed reason (1823). Rousseau (1947) similarly argues that minors lack the basic rational judgment to

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 110

resist political manipulation, and Kant (1974) claims that minors lack the autonomy or “self-rule” to overcome mere irrational desire. In fact, none of the architects of modern democratic theory thought children should have any rights at all (Wall 2012). While the notion of children’s rights now enjoys wide acceptance, even the great twentieth century democratic theorist John Rawls simply assumes that suffrage should belong only to adults (1996, 245).

Competence

Central to this legacy is the idea that children and youth lack sufficient political “competence,” meaning the capacity for political reason as expressed in such abilities as public critical thinking, discourse with others, and the ability to weigh society-wide outcomes of decisions. Archard, for example, argues against minors’ suffrage on the grounds that

we do not know what a child would choose if possessed of adult rational powers of choice because what makes a child a child is just her lack of such powers (her ignorance, inconstant wants, inconsistent beliefs and limited powers of ratiocination) (2003, 53).

As the theorist Habermas puts it, children do not possess the “communicative competence” to engage in political procedures of “reciprocal perspective taking” (1993, 64). Or, as Barber claims, children lack the core political skill of “civility” or the ability to deliberate with others in an open and respectful way (1999, 42-43).

There are several problems with this competence argument. First, competence is not in fact a criterion in any democratic society for the right to vote. No adult has to prove their competence to vote, and many adults profoundly lack capacities for deliberation, reciprocity, and civility. As Franklin notes, “the presence or absence of rationality does not justify the exclusion of children from political rights but the exclusion, if anyone, of the irrational” (1986, 34). If a particular level of competence were indeed necessary for suffrage, then one could argue that many schizophrenic, senile, low IQ, or even just thoughtless adults should be denied it; while many intelligent, politically active, or even just ordinary children and youth should not. As Schrag points out, the bar of competence “might be used to limit *adult* suffrage or to grant some adults more votes than others” (2004, 371).

Second, voting competence would be difficult to define, at least for all but the youngest of children. One would have to determine *who* gets to define competence in the first place; how it should be related to life experience, social situation, and power relations; and whether it can be defined in the same way across different cultures. How would one decide, for example, whether a 6-year old in rural India who supports his family by mending bicycles is competent or not to vote? The notion that children have to “develop” into political competence flies in the face of findings in the sociology of childhood that children are not merely potential social actors but social “agents” in their own right (James and Prout 1990; Mouritsen and Qvortrup 2002; Pufall and Unsworth 2004). If nothing else, it is clear that political competence does not suddenly spring into being upon a person turning 18 years old.

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 111

Were voting competence to be defined, it should remain democratically inclusive by involving only basic capacities for understanding political options and making political choices. As studies in the area of medical competency have shown,

African, Asian, and South American research projects demonstrate highly developed competencies among young children [with diabetes] who are forced to live fairly independently, and in the face of adversity. These findings suggest that advantaged, sheltered children in the richer societies have latent capacities that they need not develop, so that at least down to the age of four, the person who is in the body, and is the body, can have unique insights that may be essential for informed decision-making (Alderson, Sutcliffe and Curtis 2006, 32 and 33).

Similarly, a competence bar for voting could not be defined absent attention to a wide range of situational, cultural, and personal factors beyond the very crude measure of simple number of years in existence. I will later suggest that the only secure indicator of voting competence is the choice itself to vote.

Third, it is likely that children and youth possess significantly greater political competence than they are generally given credit for. Prior to women's suffrage, most men and women assumed that men were the distinctly political gender. Indeed, having greater opportunities to exercise political agency, this may even have been the case empirically. But in reality, once given the vote, women demonstrated this argument's circularity, for men only appeared more competent because only men had been able to exercise their voting competencies in the first place. Likewise, were children and youth actually able to vote, their apparent voting competence would certainly increase. Hart and Atkins have shown that American children already possess the political skill, tolerance, and civic interest to vote by age 16 (2011, 208-12), and this in a country where children lead highly privatized lives. In those countries that have in fact lowered the voting age to 16, youth have enthusiastically risen to the occasion (Hurst 2003; Folkes 2004; KRÄTZÄ 2012) and indeed proven more likely to vote than young adults (Wagner, Johann and Kritzinger 2012). Excepting babies and toddlers, children of all ages have marched with Gandhi, desegregated American schools, fought for a cleaner environment, and much else, suggesting the presence of significant untapped political capacities.

The most obvious example of this underlying competence can be found in the 30 or so children's parliaments that now exist around the world. Here, children from ages 5 to 17 elect local representatives who in turn elect regional, national, and sometimes international representatives to fight for children's concerns and speak before adult parliaments. While many children's parliaments are largely educational or tokenistic, many also provide significant political powers to youth and children as young as 5 (Wall 2012). Some even provide children parts of budgets (Cabannes 2006). Studies of children's parliaments demonstrate that quite young children are fully capable of debating and voting upon major political issues such as health provision, non-discrimination, educational infrastructure, child abuse, citizen birth certificates, violence in schools, gender equity, environmental protections, and

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 112

much else (Austin 2010; Conrad 2009; Sarkar and Mendoza 2005). Even if one could argue, therefore, that the very youngest of children lack competencies to vote, it is evident that any specific age of competence is both problematic to define and younger than historically assumed.

Knowledge

Competence is closely tied to knowledge. For the sake of argument, I am distinguishing competent skills to vote from the knowledge or understanding needed to vote from an informed perspective. Chan and Clayton (2006) argue against minors voting on the grounds that they have not acquired sufficient “knowledge of the political system, and understanding of the nature and significance of issues that are the subject of public and political debate” (542). Similarly, the UK Electoral Commission reaffirmed the voting age of 18 as the age of “the development of sufficient social awareness” (Cowley and Denver 2004, 60). The knowledge required to vote depends, it is argued, on understanding such things as political systems, alternative positions on major issues, and the impact of decisions on diverse populations. Even if children had the competence to vote, it would take time and education for them to gain the knowledge to do so responsibly.

Here, however, we again find that knowledge is not in reality a suffrage requirement for any other group. Voting could not, for example, demand basic literacy, since many democracies in the world (including the largest democracy, India) have significantly illiterate populations and voting is often carried out there in pictures. When tests of knowledge have in fact been used, as for example in the Jim Crow American South, they have proven unjustly disenfranchising. Adults routinely demonstrate fundamental deficiencies in political knowledge without thereby being denied the right to vote. And, of course, as for voting competence, voting knowledge would certainly increase among children had they in fact the right to exercise it. The most important kind of knowledge needed to vote responsibly is knowledge of political alternatives and how these relate to one’s own and other’s lives. But no one possesses complete understanding in this area and it is difficult to argue that older children and youth lack it inherently.

The strongest knowledge argument against minors voting has to do with understanding of political consequences. The more experience one has in the world, the more likely one is to recognize political effects on diverse lives. For example, an electorate should contemplate the heavy costs of going to war. But this argument also fails the child-exclusion test, at least when it comes to all but the very youngest. Nobody in a democracy has full experience of all the issues they must vote on. Rather, voting makes use of an aggregate of common experience. With war, for example, some adults have more understanding of it than others and some children, such as child soldiers and child war victims, know a great deal more about it than most adults. Similarly, you do not have to be an adult to understand poverty, poor health care systems, or racial injustice. Given the importance of casting a wide democratic net, and given the great variance among people’s real-world experiences and information, the knowledge threshold for voting should be minimal rather than maximal. As postmodern political theorists have argued, though not in relation specifically to children, democracies do not represent simple

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 113

summations of knowledge but rather conversations among diverse groups concerning their differences of experience (Benhabib 2004; Laclau and Mouffe 2001; Young 2000).

Independence

A final capability argument is that children are so strongly influenced by parents, teachers, mass media, and corporations that they lack the capacity for voting independence. Since minors are highly reliant on adults for their survival and well-being, their political judgments are susceptible to powerful adult manipulation. This fact is recognized implicitly in the movement mentioned above of children's parliaments, since they are deliberately separated from adult parliaments in order in part to protect children from adult interference (John 2003).

One difficulty with this argument, however, is that it assumes that political independence characterizes adults. This modernist notion ignores the reality that no one thinks and acts independently of relationships, families of origin, cultures, socio-economic background, historical context, mass media environment, and much else. Even husbands and wives have been found to influence each other's votes (Kan and Heath 2003). As Franklin observes, "to isolate one group within society and insist that they alone should display the mythical qualities of latterday Robinson Crusoes, or else be denied political rights, is unjust" (1986, 36). The concept of political dependency was used previously to deny voting rights to minorities, women, and the poor (Wall 2014). Children may be *more* dependent on others in certain respects—financially, educationally, and emotionally—but all human beings are *inter*-dependent across the many dimensions of their lives (Woodhouse 2008).

What is more, children's dependence in the private sphere should not be confused with their dependence in the public sphere. In one of the first arguments for "the right to vote for people of any age," Holt suggests that

a society which had changed enough in its way of looking at young children to be willing to grant them the right to vote would be one in which few people would want or try to coerce a child's vote and in which most people would feel this was a very bad and wrong thing to do (1975, 155 and 169).

Were children coerced to vote in particular ways, this would be a problem with adults, not children, and one preventable by similar prohibitions as against political interference generally. The reality is that children are likely to vote along similar lines to their parents, just as are spouses and members of the same social, ethnic, and cultural groups. It has been shown, for example, that young adult voters in the UK vote for the same party as their parents 89 to 92 percent of the time (Elcock 1983). But, as attested again by children's parliaments, none of this means that even the very youngest of children cannot assert their own distinctive political demands: for better schools, clean drinking water, stronger environmental protections, and much else. As a simple matter of political justice, "no persons, actions, or aspects of a person's life should be forced into privacy" (Young 1990, 120). Children and adults are equally dependent on just public orders

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 114

Arguments about Harms

A second set of objections to children and youth voting revolves, not around basic capacities, but around potentially resulting harms, whether to minors themselves, adults, or larger communities. These arguments are “teleological” in that they concern political life’s *teloi* or desired ends and consequences. Voting provides citizens with real power, however limited, over their own and others’ present and future well-being. It is possible that, however expressive of basic competence, child and youth suffrage would produce sufficiently negative results as to remain on balance unwise.

Harms to Children

Most prominent among such arguments is that voting would harm children themselves. Locke claims that, since rights exist for the sake of individuals’ “self-preservation,” “the necessities of [a child’s] life, the health of his body, and the information of his mind would require him to be directed by the will of others and not his own” (1823, 130). More recently, Scarre argues against minors voting because “most adults, because they have lived a long time, have this ability [to plan systematic policies of action], but children, because their mental powers and experience are inadequate, do not” (1980, 123). Children might vote for representatives who promise, for example, to shorten the school day, lower the driving age, or remove parental controls from mass media. Children’s relative lack of experience in the world could cause them to use their vote against their own best interests.

There are at least three difficulties with this argument. First, the possibility or likelihood of self-harm does not usually cancel the right to vote in the case of adults. Indeed, it can be argued that adults routinely vote against their own self-interest, such as when the poor support policies that only benefit the wealthy (Frank 2004). *Contra* Locke, today we normally consider the right to vote as belonging to citizens regardless of how badly they might use it. Since nobody can rightly claim a monopoly on what is best for groups in society, it is wiser to allow the greatest possible diversity of voices to influence public debate. In the political sphere, the right to make one’s voice heard is generally considered more fundamental than the right to be protected against self-harm.

Second, preventing voting because of the likelihood of negative consequences to oneself is elitist. Historical voting tests such as Jim Crow literacy and competence laws have undermined the very foundations of democratic rule. As Franklin argues, “that adults have an understanding of the interests of children which is superior to that possessed by the children themselves is not sufficient to justify intervention in their [political] affairs” (1986, 30-31). Part of the point of voting is to give voice to those who might not otherwise be heard. In the case of children, voting would serve to challenge longstanding assumptions held by dominant adults. Here again we find an unjustified extension of private rights into public rights, in this case the right of parents to raise their own children expanded into the right of every adult to make political choices for all children. Democracies ought to avoid presuming what is best for entire populations without first hearing from those populations themselves.

Finally, and most importantly, far from doing them harm, suffrage would most likely bring children and youth great benefits. For one thing, minors' voting would enlighten political decision-makers about minors' actual lives and experiences. Given the complexity of what is in children's best interests—and of interpreting childhoods in all their cultural, gender, ethnic, class, and other diversities—child voting would enable lawmakers to make significantly better informed decisions. Even more importantly, representatives would finally be forced to provide young people full and equal consideration. Lawmakers would feel more pressure to invest in schools, strengthen health insurance, support families, improve recreation spaces, reduce child exploitation, and in general treat minors with dignity and respect.

Harms to Children's Rights

A similar argument is that, even were voting rights themselves beneficial to children, they could start a slippery slope of children gaining further rights that are not. Children might start to press, for example, for rights to make their own major medical decisions, not attend school, work full time, or divorce their parents. Or, more indirectly, children might face an erosion of existing special rights such as to juvenile courts and sentencing, public education, health care provision, and protections from marriage, employment, and serving in the military. Indeed, some already see problems in areas such as minors in the United States being increasingly tried for crimes as adults (though, of course, this in a context lacking children's vote). As Guggenheim summarizes this objection, the more children gain political rights, the less societies will "treat children like children" (2005, 266). Instead of focusing on children's rights, "a caring society would insist on considering [children's] needs and interests" (ibid.).

One difficulty with this argument is that it tends to misunderstand voting's purpose. Except in the case of direct referenda, voting does not directly make social policy but indirectly elects representatives to act as they see best for the whole community. Representatives are supposed to represent children already. The difference added by minors voting is that a third of representatives' constituents would now gain the right to enforce accountability. No voting group enjoys total liberty unchecked by other voting groups and established legal precedent. Children would only gain the right to full-time employment, for example, were such a right supported by the majority of a voting population and not contrary to other established rights such as to non-exploitation and full-time education.

More importantly, the slippery slope objection fails to take into account the difference between voting rights and other kinds of rights. Children, of course, already enjoy a vast array of rights besides political rights: other so-called "participation" rights such as to freedom of thought, religion, and culture; an even wider range of "protection" rights such as against discrimination, sexual abuse, and labor exploitation; and "provision" rights such as to public education, health care, and parental support. Some rights legitimately belong to specific groups based on their distinct situations, such as women's rights to maternity leave, the poor's rights to welfare, ethnic minorities' rights to affirmative action, disabled persons'

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 116

rights to accessibility, and the elderly's rights to social security. Children likewise deserve distinct rights such as to a free education, a separate juvenile justice system, non-marriage, and parental protection. But voting is the kind of right that belongs to citizens in common, like other universal rights such as to freedom of expression, non-exploitation, and non-violence. Voting is a common right because it elects representatives whose actions affect the entire community. Were young people to gain the right to vote, they would neither lose their own specific areas of rights nor gain special powers to make policies just for themselves. Rather, they would simply join with adults in the shared pursuit of a more just society for all.

Harm to Adults

Another harm-related argument is that suffrage would hand children and youth powers to harm adults. Children's political influence could, for example, undermine the rights of parents, roll back gains by women, or reduce social support for the elderly. As Cowley and Denver note, children might make poor voting choices because they "have little experience of life beyond family and school, and no memory of governments or public affairs going back further than two or three years at most" (2004, 61). The major concern here is the rights of parents. If children could vote, parents might find themselves less able to demand success in school, pass on their faith, set bedtimes, make medical decisions, and so on. Guggenheim argues that "attempting to consider the rights and needs of (very young) children without simultaneously taking into account the rights and needs of their parents is akin to attempting to isolate someone's arm from the rest of their body" (2005, 13-14). Children's suffrage could, in effect, replace much of parental authority with that of the state, as children increasingly gain the ability to use the ballot to circumvent parental control.

One flaw in this argument, however, is that it fails to recognize that children will always exercise less political power over adults than adults exercise over children. For one thing, children and youth are almost everywhere a minority of the population. Even more importantly, children already hold less power in other areas of life supporting politics, such as economics, educational attainment, and cultural capital. In addition, children will generally possess less political clout than adults simply by virtue of having spent fewer years of their lives exercising political rights. Young people's suffrage would not overturn adult power so much as provide the least naturally powerful age group greater political balance.

Furthermore, it is not necessarily problematic that parents', teachers', and other adults' authority over children should be checked by public policies. Before the 1970s, adults were rarely prosecuted for children's physical or sexual abuse. Minors' voting is likely to challenge the many ways that parents, other adults, and communities harm children in ways to which children are better attuned. Just as women voting arguably improved gender relations, so also would children voting improve age relations. It would force parents and other adults to relate to children more respectfully and less exploitatively. Parents could find themselves, for example, required to be involved in schools, obliged to save for college, less protected in cases of sexual exploitation, or held to firmer responsibilities after divorce.

Finally, just as children voting would likely improve the lives of children, it would also likely improve the lives of adults. Democratic deliberation aims on the whole to help the people of a country air their concerns and differences and thereby expand justice. Children's suffrage would help parents, teachers, doctors, ministers, NGO leaders, and policy makers to better understand and confront the diversity of children's issues and experiences. It would enable them to do better jobs, for example, fighting discrimination in schools, responding to disabilities, and developing effective medical practices. Adults themselves would gain greater understanding of the interdependent social systems of which they are a part. As just one small example, the children's parliament in Barra Mansa, Brazil successfully pressed for brighter lighting on unsafe streets, which made the streets safer for adults too (Cabannes 2006, 203). The wager of democracy is that a greater diversity of voices will on the whole produce a more fully just society for all. And, if nothing else, since children grow up to become adults, children's improved well-being pays off in better lives for adults of the future.

Harms to Culture

Finally, a different kind of argument can be made against children's suffrage: that it would impose a European colonialist culture of individualism on more collectively-oriented cultures of the global South. I have not seen this argument made about voting specifically, but it is frequently cited against the advance of children's rights generally. Some argue, for example, that "granting children the amount of participation in decision making granted in the Convention [on the Rights of the Child] may be more problematic in cultures where freedom of expression and self-assertion are less valued than obedience and duty fulfillment and where adult-child interactions are traditionally quite hierarchical" (Murphy-Berman, Levesque, and Berman 1996, 1259). Others point out the ways in which the pursuit of children's rights by many Western-based NGOs "draws children out of their own contexts of family and community, and re-locates them within the rather different context of the developmental organization" (White 2007, 510). For others, children's political rights could threaten deep cultural traditions of gender differentiation (Jacquemin 2006).

One difficulty with this argument is that there is not in reality a single nation on Earth that does not structure its laws around some notion of "rights." A right, in its simplest terms, is what a society guarantees to its inhabitants. Indeed, the CRC is the most universally ratified treaty in all of human history, having gone into effect in all but three countries in the world (the largest exception being the Northern country of the United States). The CRC, furthermore, despite not including suffrage, does grant children several similar political rights such as "the right to express [their] views freely in all matters affecting the child" (Article 12), "the right to freedom of expression" (Article 13), "the right of the child to freedom of thought, conscience, and religion" (Article 14), and "the rights of the child to freedom of association and to freedom of peaceful assembly" (Article 15). If children's political rights are tools of colonial hegemony, then it is a hegemony in which every government on the planet is complicit.

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 118

Second, history shows that children's voting rights are if anything stronger in non-Western cultures than in Western ones. The first children's parliament was created in Rajasthan, India, and has had many significant successes, and many of the more powerful children's parliaments today are in less-developed countries such as Bolivia, Brazil, and Nigeria (John 2003). Tokenism is more often found in the children's parliaments of Europe, which tend to be more educational in nature. The reason for this greater political traction outside the West is that children here are often already more fully integrated into public life through work, labor organizations, and social roles. If anything, it is the highly privatized childhoods of Europe and North America that are more difficult to square with children's suffrage.

Finally, it is inconsistent to cite colonial oppression as a reason to perpetuate the oppression of children. Post-colonialism has many different possible meanings, but it rarely involves doing away with the right to democratic self-governance (Said 1978; Spivak 2010). If, as Spivak (2010) argues, it is necessary to "let the subaltern speak," then who has been more profoundly silenced by global cultural hegemony than the young? Minors' suffrage and anti-imperialism share the same goal of empowering the poor and the marginalized. Every democracy in the world (besides Saudi Arabia) grants the right to vote to women (Wall 2014). Oppression typically rests on creating binary oppositions—between genders, classes, ethnicities, and so on—and needs to be challenged also on binary oppositions of age. Imagine if a child factory worker making clothing in Bangladesh for Forever 21 were to gain the power to vote.

Conclusion: A Proxy-Claim Vote

I have argued that the right to vote should be extended as broadly as possible and that the major arguments against extending it to minors are unpersuasive. The deficiencies lie less on the side of children and youth than on the side of ingrained historical assumptions about them. None but the very youngest of children can justly be denied suffrage on the basis of competence, knowledge, or independence. No young person possessing suffrage would cause more harm than good to themselves, adults, or societies. If democracy is the experiment of including "the people" in governance, then it is undemocratic to exclude the third of the people who happen to be under 18 years of age without significantly more compelling reasons for doing so.

Since much of the devil is in the details, I would like briefly to flesh out, in conclusion, my proposal of a proxy-claim vote in which all citizens are granted a right to vote at birth that is exercised by a parent or guardian proxy until such a time as it is claimed by the child by registering to vote. While a proxy vote may seem undemocratic through the eyes of the modernist ideal of the autonomous citizen, and while a claim for the vote in childhood challenges modernity's adult-only premises, my proposal is the best way to realize the postmodern democratic ideal of maximum inclusion of the people's lived experiences of difference.

There have been three concrete proposals for how to extend suffrage to children. What has been called a "liberationist" proposal is to make suffrage simply universal, on the assumption that very few children who do not understand what goes into

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 119

voting would actually do so anyway (Holt 1975). As Franklin puts it, “the potential danger of a few children voting who perhaps should not is far outweighed by the actual injustice involved when large numbers of children who are interested and informed about politics and wish to vote are excluded from so doing” (1986, 45). Another possibility is to establish what Schrag calls a voting “fitness test” in which, somewhat similarly to a driving test, anyone below the age of 18 would have to demonstrate a basic voting capacity, which in Schrag’s view would involve the proven ability to differentiate between major political ideologies (1975, 452). Finally, a proxy proposal was introduced into the German parliament in 2008 (though has yet to be voted upon) by a coalition of liberal and conservative parties and youth activists and advocates. This legislation would grant suffrage to all citizens at birth, to be exercised by a parent or guardian until they believe the child is ready to use it (CRIN 2008; de Quetteville 2008; Goethe Institute 2010). The idea here is that many children and youth are competent to vote, and their parents stand in the best position to determine when this competence is reached.

My own proxy-claim proposal is for a combination of the German and liberationist models. The problem with purely universal suffrage, as already noted, is that younger children without any capacity to vote at all would become the only major group without the vote and therefore even more profoundly marginalized than they already are. The problem, in contrast, with the second idea of a fitness test is that it is unclear how the required competencies could justly be defined and who could define them without political manipulation. The German proposal has the virtue of combining maximum children’s suffrage with direct representation for those not yet able to exercise it for themselves. However, it places control over who gets to vote in the hands of adults rather than children themselves, providing adults the unjust ability to deny suffrage to children who desire it.

The best way to ensure maximum democratic inclusion is to combine a proxy vote with the right to claim it for oneself as soon one chooses to do so. The act of registering to vote is the best indicator of minimum capacity to vote, since it requires the same abilities as voting itself: competence to make political choices, knowledge of political alternatives, and independence to act for oneself. Babies and toddlers are unlikely to register, but older children and youth may wish to do so at different ages depending on their circumstances, experience, and interest. While it is possible that some children (and some adults) would choose to vote for frivolous reasons—say, to feel grown up or part of the crowd—on the whole it would be democratically unjust to bar access to those wishing to vote for serious reasons just because some do not. The purpose of the right to vote would then be as fully as practicably realized: to hold elected representatives accountable to the widest possible diversity of the people.

Such a proposal raises many questions that require further discussion. Which parent would exercise the proxy vote if parents disagreed or were divorced? What about when children are legal citizens but their parents are not? Should schools be involved in registration or voting so as to make children’s suffrage more widely available, or should they be excluded to avoid undue political influence? Should children also be able to run for office, and if so how would that be balanced with the

Why Children and Youth Need the Right to Vote: An Argument for Proxy-Claim Suffrage 120

right not to work and to full-time education? While these and other questions cannot be answered here, I would simply note that, however they might be resolved, in all cases the result would be an improvement on the current situation in which all citizens under the age of 18 are disenfranchised entirely. It would be an improvement, in other words, in democracy's democratization.

John Wall is Professor of Philosophy, Religion, and Childhood Studies at Rutgers University, Camden. He is author of *Ethics in Light of Childhood* (Georgetown 2010) and *Moral Creativity* (Oxford 2005), as well as co-editor of *Children and Armed Conflict* (Palgrave 2011), *Marriage, Health, and the Professions* (Eerdmans 2002), and *Paul Ricoeur and Contemporary Moral Thought* (Routledge 2002).

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THE PRE-POLITICAL CHILD OF CHILD-CENTERED JURISPRUDENCE

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EXCERPTED COURSE EDITION

| 704 I. INTRODUCTION

Childhood, the category that holds, defines, and governs children, is a social construct that is contingent upon time and place. There is some universality in the vulnerability and dependency of young children, but the length, contours, and extent of that dependency, as well as the assignment of children to dependency, vary greatly across time, nation, and geography. The present construction of children in the United States as dependent—and dependency as private, familial, and developmental—naturalizes childhood and the roles children perform as a class, within racial, ethnic, national, age, gender, and economic groups. This construction limits interrogation of what the public might owe these dependent persons and what | 705 public roles children play. With childhood safely ensconced in the family and without a voice outside the family, the public can avoid universal questions and answers about what children, as persons, need and want; what goods children, as a class, should have; and what material conditions, opportunities,

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and influences are optimal for all children. Instead, we ask what our own children should have and what they need for success. This Article uncovers the political nature of childhood and the distributive work that the legal regulation of childhood performs.

Just as feminist jurisprudence has revealed the political roles, contours, possibilities, and limits of dependency, privacy, and autonomy through the lens of gender, this Article illustrates similar dynamics through the lens of childhood. Just as feminists have challenged the privacy and naturalness of family and its political function of creating and ordering gender, so too will a critical approach to children and the law unearth the political roles of childhood and reveal the liberating and subordinating functions of placing children in families as vehicles for the creation and distribution of economic and social roles and resources. This analysis will place children at the center of the inquiry of the legal construction of childhood and will challenge ⁷⁰⁶ the contours of childhood, examine children's agency, and critically explore what purposes childhood serves.

This Article lays the groundwork for the next stage of this project which will explore, in more depth, the subordinating and emancipating functions of our current legal construction of childhood and suggest how a critical view of childhood, consistent with the empiricism of critical theory, would differ from other critical theories that primarily (if unselfconsciously) contemplate only adults as subjects of social, political, and moral freedom. A jurisprudence of childhood might account for the unique developmental issues facing children, while analyzing the generational aspects of childhood with particular attention to its transitive and temporary aspects. This analysis will view children in the context of a transformative childhood that sits within the context of a larger system that treats dependency as both autonomy-promoting—as relational and generational matters—and autonomy-limiting—as a functional matter.

In other words, although children inhabit a socially constructed category deeply connected to race, gender, class, and citizenship, children's vulnerability and dependency perform differently according to unique aspects of childhood, as well as along racial, class, and gender lines that affect not only children themselves, but also the adults on whom they depend. Moreover, unlike other subordinated groups, children will outgrow their subordination as children; but whether they will be subordinated as adults depends very much on their childhood, i.e., their race, class, and gender, or perhaps more accurately the race, class, and gender of their parents.

2009

THE PRE-POLITICAL CHILD

Thus, just because this inquiry borrows methods of critical jurisprudence, these methods do not necessarily dictate that childhood be the same as adulthood or that children should vote, possess legal authority, or have agential status in other arenas. Nor is it clear that they should not. Childhood encompasses a certain set of vulnerabilities and dependencies that are intertwined in present social, economic, and political systems, and this combination can be a source of power for, and also a weapon against, children and adults. This Article deconstructs the legal category of childhood and frees childhood jurisprudence to travel its own course.

| ⁷⁰⁷ Part II sketches the category of childhood in the United States as a naturalized state characterized by dependency, privacy, vulnerability, and development. Part III briefly surveys and compares feminist and child-centered jurisprudence, particularly as they have been organized around and have addressed dependency. This Part contrasts their approaches to the naturalized aspects of their respective subjects. Part IV denaturalizes childhood by analyzing the changing and variable roles children and childhood play in law and society. This section uncovers the historical, philosophical, political, and economic roles of children in our liberal system. It illuminates the centrality of the creation and privatization of childhood to liberalism, current notions of individualism, and the construction of social goods and problems as private and individual, rather than collective. Part V suggests the implications of the politicized child for a jurisprudence of childhood.

[Sections II–III (pp. 707–737) are omitted.]

The omitted parts give Appell’s anatomy of the category this history will explain. Part II shows how American law constructs the child through three interlocking ideas — developmental, dependent, private — so that childhood’s chief legal work is sorting competents from incompetents; children are “not yet full persons.” Part III compares two responses. Feminist jurisprudence asked why the law built “woman” as naturally dependent; child-centered jurisprudence — the “children understand more than the law admits” advocacy you rehearsed this week — argues for children’s capacity without asking why capacity is the price of admission. Section IV asks where that price came from.

IV. THE CREATION OF A NEW AMERICAN CHILDHOOD

Childhood was not always, and still is not universally, an inchoate period during which human beings under eighteen years old are tucked away from the polity and market. On the contrary, far from being bit players in an adult pageant, children and their political, symbolic, and legal images had and continue to have deep and broad roles in shaping culture, class, race, economics, and politics in the United States. Children continue to serve important roles in the transmission of culture, wealth, and justice. Both material and ideological conditions contributed to the emergence of our contemporary notions of childhood as a private time of social, psychological, and physical development when children need care, nurture, and education to become functioning, independent adults. These notions of childhood were central to the formation of and continue to be at the core of contemporary American ideas about justice, liberty, and the polity.

A. Ideological Conditions Contributing to Modern Constructions of Childhood

Contemporary notions of childhood as a separate and dependent status, in opposition to adulthood and moral and political agency, are grounded in the epistemological, moral, and ⁷³⁸ political philosophy of the Enlightenment and the rationalist and empiricist thinking that informed it. These intellectual movements centered on notions that people had the intellectual capacity and knowledge to find, or at least explain, meaning in rational, rather than solely faith-based or divine terms. This turn toward the individual as a source of knowledge and understanding reached through rational or empirical processes underscores the connection between agency and adulthood—a time when abstract thinking is, normally, at its height. This humanization and individuation of capacity for wisdom set the stage for movement away from central authority and toward a more autonomous or unbounded agency—one that paved the way for the U.S. Constitution.

The framework that legally and politically separates children from adults is traceable at least as far back as John Locke, whose political and moral philosophy greatly influenced American political theory. The distinction between adults and children was central to Locke's interdependent epistemic and political theories. This distinction both

2009

THE PRE-POLITICAL CHILD

created and located power in knowledge while simultaneously accounting for why children do not have power, but are subordinated to adults. Locke |⁷³⁹ established an epistemology that was fairly novel at the time in that it held that knowledge is not innate, but acquired through sensation and reflection. He utilized children (and “idiots, etc.”) to prove his point that there are no universal maxims imprinted at birth because children do not know what adults know until they learn it. In contrast to adults, children are blank slates that acquire knowledge through accumulated and increasingly complex experience of and reflection on the world. According to Locke, much of this learning and certainly the basic principles of science and abstract knowledge are the provenance of the academy. Here, one can see a familiar framework for child development and capacity wherein children are undeveloped, unknowing, and unwise but in a state of becoming the opposite of those adjectives.

Childhood scholars have demonstrated the centrality of the distinction between adult and child capacity and dependency to the construction of the liberal civil polity and the distinction between public and private. Besides children’s role in reproducing culture, which has political repercussions, the actual and symbolic removal of children from the polity in 1787, |⁷⁴⁰ as Holly Brewer has demonstrated, was an integral part of the movement from divine rule to rule by consent. This transformation was centuries in the making. It required a shift away from power relations and authority framed by a patriarchal lineage where authority came from God to king to subjects, and parents to children. Like children, who could not consent to parental authority, the king’s subjects had no power to consent to royal authority or to parent-like control over those born into lower stations. The revolutionary change undergirding the birth of the United States was the distinction between adults and children in terms of capacity for self-governance and the ability to consent to authority.

This distinction was the product of several conceptual changes that occurred during and after the Reformation regarding the location and authority of sovereignty in religion and in the polity. In step with these changing notions of epistemology and intellectual authority, the political paradigm shifted from primogeniture to consent of the governed. Locke’s political writings provided a compelling framework for consent that drew upon children, just as he did in his epistemological work. Under his political theory, all men were born free, rational, and equal. Accordingly, they were perfectly capable of governing themselves.

Children's vulnerability and subordination challenged this born-free view of the citizen. Children were not free in fact; their parents or other adults ruled them. This seeming contradiction operated both to explain and distinguish children's nonconsensual subjection to parental authority and the freedom into which men ⁷⁴¹ were born. Locke drew upon the epistemological point that children live in a temporary stage of dependency, a status they eventually outgrow as they gain the knowledge and ability to govern themselves (i.e., enter adulthood). In contrast to children, adults can reason for themselves and should therefore have the corresponding right to consent to their government. Thus, adulthood became synonymous with authority and childhood synonymous with dependency. Children are the instantiation of the Lockean blank slates that acquire knowledge through accumulated and increasingly complex experience of and reflection on the world until they can be free from parental control and are able to govern themselves and others.

Although these ideas seem obvious today, Locke's work was practically revolutionary, and it influenced thought for centuries to come, including the political views of the American colonists and the Framers of the Constitution. In England at the time, political office and participation were inherited and children could be kings. For at least a century to come, children could hold political office simply by virtue of their birthright. There were child kings; and children under eighteen years of age could be elected to the House of Commons. Status (i.e., birthright), not consent, dictated political power. In turn, people owed allegiance through birth; that is, the father's allegiance passed to his son, even when the son became an adult, and in turn his son would owe allegiance to his father's king.

Thus, political participation was based on status and not age or reason. Children were not excised from the polity, but could hold office because their political status and allegiance came through birthright, not consent of the governed. Kings and other members of the ruling class obtained their status as a result of their parentage (just as those without power obtained their ⁷⁴² status as a result of their parentage). Childhood, to the extent it existed, was primarily a complicated relational, not developmental, category that dictated one's place in the power structure regardless of age. In effect, then, childhood was not based on developmental principles or age.

Even in the colonies, it was not unheard of to elect "elite young members" to lower houses of the legislature—boys as young as fifteen. Similarly, children, boys as young as twelve and thirteen, were ap-

2009

THE PRE-POLITICAL CHILD

pointed to office. Both boys and girls participated in political action of their own or in conjunction with adults. But as knowledge and power became more democratic (in the sense that it was accessible to people and obtainable through reason and observation), the distinction between those with and without reason became politically salient. This distinction was essential to the creation of the United States.

Indeed, the social contract we know as the Constitution of the United States reflected a revision of the construction of childhood. This revision of authority displaced birthright with consent—moving power to the people who would choose their government. In America, the people were sovereign. This meant that they had to consent to be governed. At the time, the very notion of consent encompassed capacity—reason and knowledge. Children (and others) did not have that capacity, ^{| 743} so they had to be excised from the polity until they reached adulthood. Otherwise, the notion of popular sovereignty would be meaningless. As an ideological and political matter, childhood became a category based on developmental, rather than birth or relational, status. Childhood could not be a place of power; rather it was a time and place of irrationality, vulnerability, and dependency upon adults for governance. The site of this dependency was at the hearth and not the polity.

Children were not without political value, however. Childhood became a site for the development of political actors—the adults who would be the future voting citizens and republican leaders. The founders understood the important role children would play as adults in a liberal republican democracy and saw child rearing intervention as a method to help preserve the social order and republican values of “self-discipline, a respect for authority, and a deep regard for civic virtue.” This intervention must begin early to ensure that a child’s character develops appropriately, and it brought to the forefront the previously unappreciated child rearing role of mothers who traditionally cared for children in their early years. The greater appreciation of the role of motherhood meant that even girls needed a good education so that they could better perform their political roles as mothers and independent citizens. Schools also played an important role in this ideology to teach “[k]nowledge and virtue” and “convert men into republican ^{| 744} machines.” Despite their exile from the polity, children served an important role as future leaders and voters. Childhood deliberately became a place to groom a variety of political actors, some of whom would be voting citizens and others whose role would be to teach or support these future citizens (i.e., women and slaves).

In fact, as Caroline Levander illustrates in her rich, multilayered study of the structural and symbolic roles of the child in the United States, “the child functions as a point of origin for the human” and instantiates “the promise of autonomy and the reality of dependence.” Symbolically, the liberal child featured prominently in the formation of national identity at important historical moments in the United States and served to distinguish and reify racial categories. In each of these functions, childhood served as the conceptual framework for subordination in a liberal system. That is, childhood modeled the natural dependence that terminates in the independence that would become the liberal subject, but at the same time childhood served to reflect and naturalize the very racial inequalities that produce dependency in disfavored races. For example, psychological models of human development were based on “late- nineteenth-century U.S. sociological accounts of race . . . [which served] to reinforce the essential nature of racial differences.” These “essential” racial differences were constructed as both natural (ancestral) and linear so that children of different races had predetermined ceilings, with white children having the highest ceiling. These distinctions helped to maintain white supremacy after abolition and through manifest destiny. As Levander summarizes, the United States emerged

out of a series of racial encounters between Mexican, Native American, Anglo, and African peoples. Yet |⁷⁴⁵ analysis of the child in an American context illustrates

not only how the U.S. nation materializes out of a series of racial conflicts but, more fundamentally, how the nation is imaginatively created and sustained through the logic of

racial hierarchy that the child helps to naturalize.

The American child defined the liberal subject as its opposite but also as its regulator, both dictating its terms and guarding its entry. Thus, the ideological distinction between childhood and adulthood was at the core of a new world order that both democratized power and managed to maintain hierarchy along racial and gender lines. The role of childhood in the creation of this authority made such a feat possible because the child in this new order appeared to be natural, developmental and dependent—and, therefore, private, even as childhood itself served to model, distribute, and regulate power and authority along racial, ethnic, class, and gender lines.

[Section IV.B (pp. 745–750) is omitted.]

2009

THE PRE-POLITICAL CHILD

Omitted Section IV.B gives the economic half of the story. Children worked — on farms, as servants and apprentices, as slaves — until industrialization moved work out of the home and made the schooled, leisured child the norm: a middle-class norm that child savers, psychologists, and juvenile courts then enforced on poor families. Notice the ending: exiled from the polity, children kept acting politically anyway — in the Civil Rights movement and the anti-war movement that won the Twenty-Sixth Amendment, lowering the voting age to eighteen. The line has moved before; ask what kind of argument moved it.

V. TOWARD A JURISPRUDENCE OF CHILDHOOD

The foregoing synthesis of the evolution of American childhood helps to briefly illuminate childhood as partly, if not entirely, an artificial social category, framed and reinforced by the law to create, define, and maintain power. The elasticity and contingency of childhood and its norms respond to changing material and ideological conditions. This review also reveals how childhood and adulthood work in opposition to each other, and also as points on a chronological line. Absent in these structures, however, is meaningful engagement in the relationship between childhood and adulthood—that is, how this transition to adulthood occurs.

Moreover, and relatedly, this construction of childhood formulates the child as raceless (i.e., white) and middle-class, much like the raceless (i.e., white) middle-class man who is the ⁷⁵¹ liberal subject that feminist and critical theorists have exposed and contested. No matter who this child is or from whence she or he comes, this same child is expected to become the white, male, middle-class, adult liberal subject upon reaching adulthood. Childhood's defining characteristics as natural, dependent, and private mask the differences among children while reinforcing the normative middle-class child as the measure of childhood; moreover, these characteristics further obfuscate the inequalities among the adult liberal subjects children are expected to become. This standardization effectively serves to reproduce poverty, race, and wealth because the privacy and dependency of childhood ensures that children will step into the adult shoes their childhoods provided.

[Subsections V.A–V.C (pp. 751–755) are omitted.]

The omitted subsections revisit Part II's three constructs with this history in hand. Developmental science looks objective, but its milestones measure every child against the middle-class child. Dependency hands children to adults who hold power without accountability to them — then ends abruptly: at eighteen the dependent becomes the self-sufficient citizen, owed nothing. Privacy converts shared structural needs — food, schools, neighborhoods — into private family matters, reproducing inequality. So when Section V.D opens with childhood assigning “competence” and “incompetence,” read those as manufactured standards, not discovered facts, and ask what it costs to win children rights by proving they measure up.

D. Justice for Children?

The negative public engagement with childhood is possible and unremarkable because childhood, having adopted medical and psychological measures of development to create and define categories of competence and incompetence, assigns incompetence to children (primarily) and relegates it to the private realm. At the same time, childhood assigns competence to adults and the public realm. Childhood thus defines children in ⁷⁵⁶ naturalized terms, which limit their autonomy and disempower and disengage them from active roles in public life; that is, until they leave the category of childhood.

Current notions of justice for children appear to be confined to contemplating relations within the family or the state's role in protecting, punishing, or regulating children. A more expansive and ambitious approach might look at what justice for children would mean both during their childhood and as adults and include what children will need as children to have substantive equality as adults. In other words, justice for children might involve consulting with children about what they want as children and correcting the structural conditions that produce unequal opportunity beginning in childhood.

Such a set of inquiries regarding children might lead to a childhood jurisprudence that breaks out of a narrow focus on dependency and vulnerability while appreciating and bolstering the public role of childhood and its deep connections to adulthood—both to the adults who support children and through the adults the children will become. In addition, this intergenerational and politicized jurisprudence would likely inure to the benefit of women, who continue, despite many advances, to be intimately and deeply connected to and bound by depen-

2009

THE PRE-POLITICAL CHILD

dency. Toward that end, this Article has pushed existing child-centered jurisprudence to view children's moral and political claims, rights, welfare, and identity outside of, but also as members of, families.

These approaches are consistent with our conception of childhood as a time of increasing capacity and opportunity to become adults. As noted above, children are defined in part by their deficiencies but also by their capacity to become members of the polity. This is a distinct aspect of childhood, a transient stage that is expected to prepare one for full capacity as an adult—a moral and political actor. So far, however, we tend to view this development and capacity in narrow and largely psychological and legal terms of physical and cognitive maturation and legal and political incapacity. The historical context of the development of contemporary American notions of childhood, along with its continued structural and ideological replication, |⁷⁵⁷ continue to frame the child in individualized, developmental, and familial contexts, rather than in broader socioeconomic terms.

We might also examine what it would mean to recognize children as beings with agency, voice, and authority. What might children say? How might they vote? What would they say they need? Who else should be consulted? Are there methods short of full agency and political citizenship that would promote justice for children? What, if any, portions of the construction of childhood can be improved, consistent with liberalism, to comport with liberalism's abandonment of the right of birth as the measure of power? Are there other ways of conceiving justice that would be consistent with family privacy and the moral liberty that privacy entails and promotes?

This Article presents a first step toward a critical jurisprudence of childhood. It aims to challenge this Author, other students of children and the law, and even those who marginalize childhood to take a fresh look at the role of children in law and society; to take children out of the compartment of childhood and examine the connection between adulthood and childhood; and to ask a new set of questions regarding the role of childhood in the political order. The next stage of this project, "The Political Child," will begin to form a positive theory of justice that will address children's agency, but may be more engaged with intergenerational and transitional phenomena uniquely related to the organization of a society around adulthood and childhood.